

GZ: 2023-0.404.421 dated June 16, 2023 (Case Number: DSB-D550.788)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

Criminal Finding

Accused: Peter A***, born on April 14, 198*

You have, as the responsible party within the meaning of Art. 4 No. 7 of Regulation (EU) 2016/679 on the protection of natural persons in the processing of personal data, on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter: "GDPR"), OJ No. L 119 of May 4, 2016, p. 1, as amended, committed the following administrative offenses based on the facts outlined below:

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In your role as the responsible party, at least from January 13, 2023, to January 26, 2023, you unlawfully processed personal data within the territory of Austria by storing contact details (name and telephone number) of Ms. Melanie O***, Mr. Ernst P***, and five other individuals, which were disclosed to you solely due to their status as employees of N*** Straßenbaugesellschaft m.b.H. during customer visits, on your private mobile phone, in order to subsequently keep this information for the purpose of sending political advertising in connection with the 2023 Lower Austria state election. The processing could not be based on any of the legal bases specified in Art. 6 para. 1 GDPR. There was also no permissible further processing under Art. 6 para. 4 GDPR.

You have therefore violated the following provisions of the GDPR:

- Lawfulness of processing according to Art. 6 para. 1 and 4 GDPR
- Principle of processing personal data in a lawful manner, in good faith, and in a manner that is understandable to the data subject according to Art. 5 para. 1 lit. a GDPR ("Lawfulness, processing in good faith, transparency")
- Principle of processing personal data for specified, explicit, and legitimate purposes according to Art. 5 para. 1 lit. b GDPR ("Purpose limitation")

Administrative offense according to:

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Art. 5 para. 1 lit. a and lit. b, Art. 6 para. 1 and 4 in conjunction with Art. 83 para. 5 lit. a GDPR OJ L 2016/119, p. 1, as amended

Due to this administrative offense, the following penalty is imposed:

Fine of Euro

if this is uncollectible

substitute imprisonment of

according to

1,000.00 Euro

60 hours

Art. 83 para. 1 lit. a GDPR in conjunction with § 16

Administrative Penal Act 1991 – VStG

Furthermore, you are to pay according to § 64 of the Administrative Penal Act 1991 – VStG:

Euro as a contribution to the costs of the criminal proceedings, which is 10% of the fine, but at least 10 Euro;

Euro as reimbursement of cash expenses for

The total amount payable (fine/costs/cash expenses) therefore amounts to

Euro

Payment deadline:

If no appeal is filed, this criminal finding is immediately enforceable. In this case, the total amount is to

be paid within two weeks after the legal force to the account [here shortened] in the name of the Data Protection Authority. The purpose of use should indicate the case number as well as the date of resolution.

If payment is not made within this period, the total amount may be collected. In this case, a flat-rate cost contribution of five Euro is to be paid. If payment is still not made, the outstanding amount will be enforced, and in the case of its uncollectibility, the corresponding substitute imprisonment for this amount will be executed.

Justification:

100.00

1100.00

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1. The following decision-relevant facts are established based on the conducted evidence procedure:

1.1. The accused is the mayor of the market municipality of L***berg.

1.2. Furthermore, the accused is a sales representative at the N*** road construction company m.b.H.

1.3. In this capacity, the accused regularly conducts home visits with customers in connection with the expansion of the district heating network and for the purpose of making offers. The data collection by the N*** road construction company m.b.H. is carried out using a pre-prepared – non-digital – form, into which the contact details of interested customers are entered.

1.4. The accused stored, at least after an appointment on January 13, 2023, the name and phone number of Ms. Irmgard O*** on his private mobile phone, in order to send her political advertising for the state parliament election in Lower Austria 2023 at a later time.

1.5. At the time of the offense, the complainant also stored the name and phone number of Mr. Ernst P*** and five other individuals, whose contact details he collected as an employee of the N*** road construction company m.b.H.

1.6. On January 25, 2023, and January 26, 2023, the accused sent the following SMS message to three such collected mobile phone numbers in advance of the state parliament election in Lower Austria 2023, along with the attached document (formatting not reproduced 1:1):

“Good morning!

I, Peter A***, was on site for data collection for the offer preparation (district heating connection). I am the mayor of L***berg and am now applying for a mandate for our [name of the region], the southern region of our district, in the Lower Austrian state parliament for the [designation of the electoral proposal].

You can find some information and a video about me at this link -

https://***.***partei-noe.at/kandidatenliste/Peter-A***/ -

Every preferential vote counts for us! If you would like to support me, you can mark me on the electoral list in position **. The candidate with the most preferential votes among the ** candidates will receive the mandate. I will send a sample ballot as a photo later.

Have a nice day and best regards, Peter A****”

[Note from the editor: The graphical representation of the ballot with campaign elements inserted at this point cannot be pseudonymized with reasonable effort and has been removed.]

1.7. The affected individuals did not consent to their personal data being stored by the accused on his private mobile phone for the purpose of future political advertising.

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1.8. The accused has since deleted the contact details – at the earliest on January 26, 2023 – from his private mobile phone.

1.9. The accused had an annual gross income of EUR 61,579.44 in 2022 and a debt level of EUR 83,000.00 due to the renovation of his parents' house.

2. The findings are made based on the following evaluation of evidence:

2.1. It should first be noted that the facts were essentially not disputed by the accused in his submissions to the data protection authority.

2.2. The finding in point 1.4. is based in particular on the complaint procedure conducted by the data

protection authority under case number D124.0111/23, which was concluded with a final decision on March 16, 2023. It follows that the accused made a customer visit on January 13, 2023, and subsequently stored the data of Irmgard O*** on his private mobile phone to use it for political advertising via an SMS message on January 25, 2023.

2.3. That the accused also stored the data of Ernst P*** and five other individuals, whose contact details he collected as an employee of the N*** road construction company m.b.H., on his private mobile phone at the time of the offense is evident from the complaint procedure under case number D124.0110/23 and from the submissions made by the accused in his supplementary statement of May 30, 2023, in the present proceedings.

2.4. That the accused has since deleted the data from his private phone is evident from the statements in his justification of May 22, 2023. That the deletion occurred at the earliest on January 26, 2023, follows from the fact that he sent a text message for political advertising on that day.

2.5. The finding regarding the income and debt level of the accused is based on the disclosure of his income and asset situation submitted with his statement of May 30, 2023, and the attached income tax assessment for the year 2022.

3. Legally, it follows:

3.1. Regarding the material scope of the GDPR and the jurisdiction of the data protection authority

3.1.1. The material scope of the GDPR according to Art. 2 GDPR is undoubtedly fulfilled in the present case. The accused has not made any submissions to the effect that the GDPR would not apply. The household exemption according to Art. 2

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Abs. 2 lit. c GDPR is not fulfilled, as the processing took place in connection with the professional activity of the accused (cf. Recital 18 GDPR).

3.1.2. Art. 83 Abs. 5 lit. a GDPR stipulates that in the case of violations of the provisions of Art. 5, 6, 7, and 9 GDPR, fines of up to 20,000,000 Euros or, in the case of an enterprise, up to 4% of its total worldwide annual revenue from the previous financial year may be imposed, whichever amount is higher. According to § 22 Abs. 5 DSG, the authority to impose fines on natural and legal persons for Austria as the national supervisory authority lies with the Data Protection Authority.

3.1.3. As a result, the GDPR applies to the specific case, and the Data Protection Authority is both materially and territorially competent for the administrative fine procedure in question.

3.2. Regarding the lawfulness of data processing

3.2.1. The GDPR defines the term "processing" in Art. 4 No. 2 GDPR by enumerating a series of possible usage operations. This includes the collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

3.2.2. By storing contact details from the data entered on the physical forms into his private mobile phone to transmit political advertising to them at a later time, the accused has processed personal data as the controller within the meaning of Art. 4 No. 2 GDPR.

3.2.3. The requirements for lawful data processing are conclusively specified in Art. 6 GDPR.

Accordingly, the lawfulness of any processing requires that the processing—cumulatively with the other principles regulated in Art. 5 Abs. 1—must meet at least one of the legal grounds conclusively established in Art. 6 Abs. 1 GDPR (cf. Selmayr in Ehmann/Selmayr, General Data Protection Regulation, Commentary², Art. 5 Rz 8f).

3.2.4. In the present case, only the justification under Art. 6 Abs. 1 lit. f GDPR is relevant. There was no consent from the affected individuals for the accused to store their contact details in his private mobile phone. No other justification was presented by the accused during the proceedings. Therefore, the existence of legitimate interests of the accused or third parties in the sense of Art. 6 Abs. 1 lit. f GDPR had to be examined. Regarding the lawfulness of processing operations in relation to Art. 6 Abs. 1 lit. f GDPR, Recital 47 of the GDPR explains, among other things, that this can be justified by the legitimate interests of a controller, provided that the interests or the fundamental rights and freedoms of the data subject do not override; reasonable expectations are taken into account.

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to take into account the interests of the affected person, which are based on their relationship with the controller. In any case, the existence of a legitimate interest must be weighed very carefully, whereby it must also be examined whether an affected person could reasonably foresee at the time of the collection of personal data and in light of the circumstances under which it occurs, that there may be processing for this purpose. Particularly when personal data is processed in situations where an affected person could not reasonably expect further processing, the interests and fundamental rights of the affected person will outweigh the interest of the controller.

3.2.5. Art. 6 para. 1 lit. f of the GDPR allows processing under three cumulative conditions: (i) the exercise of a legitimate interest; (ii) necessity of the processing; and (iii) no overriding of the rights and freedoms of others (cf. Judgment of the CJEU of 11.12.2019, Case C-708/18, para. 36 with references).

3.2.6. In the present case, the interest of the accused in collecting the contact details of the affected persons was to "expand his circle of acquaintances" and subsequently generate more preferential votes for the state election in Lower Austria. However, assuming that the data processing carried out is necessary to achieve this goal, the interests of the affected persons will in any case outweigh:

3.2.7. They could not reasonably expect, due to their relationship with the accused, that he would store their contact details, which they only disclosed to him in his capacity as an employee of N*** Straßenbaugesellschaft m.b.H., in his private mobile phone, and they could also not foresee that the contact details they provided would be used by the accused for a completely different purpose – namely for political contact purposes.

3.2.8. After conducting a balancing of interests, it is concluded that the confidentiality interests and fundamental rights of the affected persons (right to confidentiality under § 1 para. 1 DSG and the right to respect for private and family life under Art. 7 EU Charter of Fundamental Rights as well as the right to protection of personal data under Art. 8 EU Charter of Fundamental Rights) outweigh the interest of the accused.

3.2.9. As a result, the legal basis under Art. 6 para. 1 lit. f GDPR for the specific processing is not suitable. No other legal basis under Art. 6 para. 1 GDPR is considered and was also not presented by the accused.

3.2.10. According to Art. 5 para. 1 lit. b GDPR, personal data must be collected for specified, explicit, and legitimate purposes and may not be further processed in a manner incompatible with those purposes ("purpose limitation").

3.2.11. Furthermore, according to Art. 6 para. 4 GDPR, if the processing is for a purpose other than that for which the data was collected, it must not be based on the consent of the affected person or
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based on a legal provision of the Union or the Member States, for the determination of whether the processing for another purpose is compatible with the purpose for which the personal data were originally collected, the following must be taken into account: first, whether there is a connection between the purposes for which the personal data were collected and the purposes of the intended further processing; second, the context in which the personal data were collected, in particular the relationship between the data subjects and the controller; third, what type of personal data is involved; fourth, what consequences the intended further processing has for the data subjects; and fifth, whether there are appropriate safeguards in place for both the original and the intended processing operations.

3.2.12. According to the CJEU, these criteria are intended to reflect the necessity of a specific, coherent, and sufficiently close connection between the purpose of data collection and the further processing of the data, and they allow for the reuse of previously collected personal data to be limited while ensuring a balance between the requirement of predictability and legal certainty regarding the purposes of processing the previously collected personal data on the one hand, and the recognition of a certain flexibility in favor of the controller in managing this data on the other hand (see the CJEU ruling of 20.10.2022, C-77/21, paras 36 and 37).

3.2.13. In the present case, there was neither a specific, coherent, nor sufficiently close connection between the purpose of data collection and the further processing of the data, nor was it in any way foreseeable for the data subjects that their data would be processed for a completely different purpose

(see above under 3.2.7).

3.2.14. By processing the contact details of the customers of N*** Straßenbaugesellschaft m.b.H. in a manner incompatible with the original purpose of collection, the accused has violated the principle of purpose limitation according to Art. 5 para. 1 lit. b GDPR as well as Art. 6 para. 1 lit. f in conjunction with para. 4 GDPR.

3.2.15. In light of the established facts, the accused thus processed personal data unlawfully and without a legitimate purpose contrary to the provisions of Art. 5 para. 1 lit. a and b as well as Art. 6 para. 1 and 4 GDPR. Therefore, the objective element of the offense is fulfilled.

3.3. Regarding the subjective element of the offense

3.3.1. Subjectively, it should be noted in the present case that due to the conscious storage of the contact details for future contact regarding political elections, it can be assumed that the accused intentionally carried out the processing in question. Therefore, there is culpability in the form of intent in the sense of Art. 83 para. 2 lit. b GDPR.

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4. Regarding the assessment of penalties, the following should be noted:

4.1. According to Art. 83 para. 1 GDPR, the data protection authority must ensure that the imposition of fines for violations according to paragraphs 5 and 6 is effective, proportionate, and deterrent in each individual case. Furthermore, para. 2 of the same article states that when deciding on the imposition of a fine and its amount, the following must be duly considered in each individual case:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing in question, as well as the number of data subjects affected by the processing and the extent of the damage suffered by them;
- b) the intentionality or negligence of the infringement;
- c) any measures taken by the controller or processor to mitigate the damage to the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical and organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any relevant previous infringements by the controller or processor;
- f) the extent of cooperation with the supervisory authority to remedy the infringement and mitigate its possible adverse effects;
- g) categories of personal data affected by the infringement;
- h) the manner in which the infringement became known to the supervisory authority, in particular whether and, if so, to what extent the controller or processor has notified the infringement;
- i) [...]
- j) [...]
- k) any other aggravating or mitigating circumstances in the individual case, such as financial benefits gained or losses avoided directly or indirectly through the infringement.

4.2. The assessment of penalties within a statutory penalty framework is a discretionary decision that must be made according to the criteria established by the legislator in § 19 VStG (see VwGH 05.09.2013, 2013/09/0106).

4.3. According to § 19 para. 1 VStG, the basis for determining the penalty is the significance of the legally protected interest and the intensity of its impairment by the act. Furthermore, according to the purpose of the penalty, the relevant aggravating and mitigating factors, insofar as they do not already determine the penalty, must be weighed against each other. Special attention must be paid to the extent of culpability. Considering the nature of administrative penal law, §§ 32 to 35 of the Penal Code are to be applied mutatis mutandis. The income and asset situation and any maintenance obligations of the

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The circumstances of the accused must be taken into account when determining fines; however, this is only to the extent that the provisions of the GDPR that are directly applicable do not displace the provisions of the Administrative Penal Code (VStG) and to the extent required by Article 83(8) of the GDPR and Recital 148 regarding the procedural guarantees to be provided.

4.4.

When a fine is imposed on a natural person, a substitute imprisonment must be determined in accordance with § 16(1) VStG for the case of non-collectibility. The substitute imprisonment must not exceed the maximum penalty for the administrative offense threatened with imprisonment and, if no imprisonment is threatened and nothing else is specified, two weeks.

4.5.

In relation to the present case, the following aggravating factors were considered in the determination of the penalty:

- Nature and severity of the violation: The processing in question by the accused constitutes a serious infringement of the data protection rights of seven affected individuals. The affected individuals could rely on the fact that their personal data, which they disclosed to the accused as an employee of a private company, would not subsequently be kept as contact data for election appeals. Individuals running for political office should not gain an advantage in elections by using personal data entrusted to them for an entirely different purpose. As a result, the nature and intensity of the infringement of the fundamental right are to be classified as high.
- Intentionality: The violation was committed intentionally by the accused (see point 3.3.1.).

4.6.

In relation to the present case, the following mitigating factors were considered in the determination of the penalty:

- Prior convictions: There were no relevant prior convictions against the accused with the Data Protection Authority due to violations of the GDPR or the Data Protection Act (DSG) to date.
- Cooperation in the administrative penal proceedings: The accused responded to the requests of the Data Protection Authority in the administrative penal proceedings in a timely manner. The accused admitted to the Data Protection Authority the sending of the messages, showed cooperation in working with the authority, and was confessing. This contributed significantly to clarifying the facts of the case. Furthermore, the accused acknowledged the wrongful nature of his act through his confession.

4.7.

In determining the penalty, considerations of special prevention and general prevention may also be included according to the consistent case law of the Administrative Court (VwGH) (cf. VwGH 15.5.1990, 89/02/0093, VwGH 22.4.1997, 96/04/0253, VwGH 29.1.1991, 89/04/0061). The supervisory authorities must also ensure, according to Article 83(1) of the GDPR, that the fines are effective, proportionate, and deterrent in each individual case.

4.8.

The imposition is necessary in any case in the sense of general prevention to sensitize responsible parties (e.g., other individuals seeking or holding political office) regarding such unlawful data processing.

4.9.

There are no special preventive reasons. The Data Protection Authority was given the impression that the accused will not commit such violations in the future.

4.10. The specifically imposed fine of EUR 1,000.00 therefore appears, in light of the value of the act realized, measured against the available penalty framework of Article 83(5) of the GDPR (here up to EUR 20,000,000) in connection with the income and asset situation of the accused, to be appropriate in terms of the act and the culpability.